

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

15. JENNIE VICTORIANO V. DANIEL VICTORIANO

PFL20200111

Contempt

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on April 1, 2026, alleging six counts of contempt by Respondent. Respondent was personally served on May 16, 2026.

Parties appeared for the arraignment on June 11, 2026. The court appointed the office of the Public Defender to Respondent and continued the matter to August 27, 2026, at 1:30 PM in Department 5.

Parties are ordered to appear for arraignment.

Respondent's Request for Order

Respondent filed a Request for Order (RFO) on June 9, 2026, seeking a modification of permanent spousal support orders. Respondent did not concurrently file an Income and Expense Declaration. Petitioner was mail served some of the required documents on August 5, 2026. The court finds this does not comply with the requirements of Family Code section 215, which requires personal service for post-judgment requests for modification.

Further, the court finds the service to be untimely. Civil Procedure section 1005(b) which states: "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California..." This would have made July 31, 2026, the last day for mail service.

Petitioner filed a Responsive Declaration and Income and Expense Declaration on August 19, 2026. It was served on August 18, 2026. Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made August 14th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.

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The court drops Respondent's RFO from calendar due to the multiple procedural errors. Respondent failed to file an Income and Expense Declaration as required. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Respondent failed to properly serve Petitioner pursuant to Family Code section 215. Respondent failed to timely serve Petitioner.

All prior orders remain in full force and effect.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR ARRAIGNMENT.

THE COURT DROPS RESPONDENT'S RFO FROM CALENDAR DUE TO THE MULTIPLE PROCEDURAL ERRORS. RESPONDENT FAILED TO FILE AN INCOME AND EXPENSE DECLARATION AS REQUIRED. "FOR ALL HEARINGS INVOLVING CHILD, SPOUSAL, OR DOMESTIC PARTNER SUPPORT, BOTH PARTIES MUST COMPLETE, FILE, AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION." CAL. RULE CT. 5.260(1); SEE ALSO CAL. FAM. CODE §2100. THE PARTY REQUESTING SUPPORT SHALL FILE AND SERVE THEIR INCOME AND EXPENSE DECLARATION WITH THE INITIAL MOVING PAPERS. EL DORADO SUP. CT. RULE 8.03.01. RESPONDENT FAILED TO PROPERLY SERVE PETITIONER PURSUANT TO FAMILY CODE SECTION 215. RESPONDENT FAILED TO TIMELY SERVE PETITIONER.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07

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16. MACINNAH VIDMAR V. SHELDON WILSON

26FL0408

Respondent filed a Request for Order (RFO) on May 27, 2026, seeking child custody and support orders. Respondent did not file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on July 16, 2026, with a review hearing on August 27th. There is no Proof of Service showing Petitioner was properly served.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on July 16, 2026, and mailed to the parties the same day.

The court finds good cause to proceed with the custody portion of RFO only. The court finds the parties' agreement to be in the best interests of the minors. The court adopts the agreement as set forth in the July 16th CCRC report as its order.

The court drops the request for child support from calendar. First, Respondent did not properly serve Petitioner. Second, Respondent failed to file an Income and Expense Declaration. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Last, the parties continue to cohabitate, and therefore, a support order is not appropriate at this time.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CUSTODY PORTION OF RFO ONLY. THE COURT FINDS THE PARTIES' AGREEMENT TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE JULY 16TH CCRC REPORT AS ITS ORDER.

THE COURT DROPS THE REQUEST FOR CHILD SUPPORT FROM CALENDAR. FIRST, RESPONDENT DID NOT PROPERLY SERVE PETITIONER. SECOND, RESPONDENT FAILED TO FILE AN INCOME AND EXPENSE DECLARATION. "FOR ALL HEARINGS INVOLVING CHILD, SPOUSAL, OR DOMESTIC PARTNER SUPPORT, BOTH PARTIES MUST COMPLETE, FILE, AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION." CAL. RULE CT. 5.260(1); SEE ALSO CAL. FAM. CODE §2100. THE PARTY REQUESTING